

IN THE DISTRICT/SUPERIOR COURT FOR THE STATE OF ALASKA
AT _____

_____)	
PETITIONER (protected person))	
Birthdate: _____)	
☐ Petitioner is a child. Who is signing for the child?)	CASE NO. _____
Name: _____ DOB: _____)	<i>[The court will fill in this line]</i>
Relationship to child: _____)	
v. _____)	
RESPONDENT (restrained person))	
Birthdate (estimate age if unknown): _____)	
☐ Respondent is or appears to be a minor)	

**PETITION FOR
STALKING
PROTECTIVE ORDER**
(for non-DV cases only**)

I swear or affirm under penalty of perjury that all the information I provide in this petition is true to the best of my knowledge and belief.

1. I request the following protective order(s).

If there is any chance you will need protection for more than 20 days, you should request both an ex parte (20-day) order and long-term (one-year) order by checking both boxes.

- ☐ an ex parte protective order (20-day order).
[This order can take effect immediately based on only the petition and Petitioner's testimony, before Respondent knows about the ex parte petition. If the ex parte order is granted, the police will serve it on Respondent. If the ex parte order is denied but the court still sets a hearing on your request for a long-term order, the police will serve Respondent a copy of this petition and notice of the long-term hearing date.]

I certify that I

- ☐ have **not** tried to notify Respondent that I am filing this petition.
☐ notified or tried to notify Respondent as follows:

- ☐ a long-term protective order (one-year order).
[This order can only be issued after notice to Respondent and a court hearing. This order will last for one year, unless the court ends it sooner. The police will notify Respondent of the hearing.]

2. Respondent is a: *[check all that apply]*

- | | |
|---|--|
| ☐ (former) friend | ☐ neighbor, landlord, or tenant (not living together) |
| ☐ classmate | ☐ partner or ex-partner of one my family members |
| ☐ client or former client | ☐ ex-partner of my current significant other |
| ☐ co-worker or employer | ☐ current significant other of my ex-partner |
| ☐ other (describe): _____ | |
| ☐ I do not know and have never been acquainted with Respondent | |

****If you are related to Respondent by blood, adoption, or marriage, or have ever (1) been in a dating or romantic relationship with Respondent, (2) lived with Respondent, or (3) had a child with Respondent, file a domestic violence petition (DV-100) instead of this form. Stalking is included as one of the qualifying crimes of domestic violence.****

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3. Respondent has stalked me as described below:

*[Be as specific as you can about what Respondent did, including when and where it happened. The judge must have details in order to make a decision on your petition. You may find it helpful to read the definitions in the text box below before you begin writing. You **must** fill out at least the starred (*) sections to qualify for a stalking protective order. Attach additional pages if necessary—write only on one side of the page.]*

- a.* ☐ I specifically told Respondent not to have contact with me as described below:
[Include date/time and how you communicated this to Respondent]

☐ I did not specifically say anything to Respondent, but Respondent should have known that I wanted no contact because:

- b.* First nonconsensual contact:

- c.* Second nonconsensual contact:

- d. Additional nonconsensual contacts:

- e.* The contacts described above made me afraid of physical injury or death, or the physical injury or death of my family members, because:

[This is a plain language summary of the stalking statutes. For the complete text, see AS 11.41.260-270.]

"Stalking" means that the respondent made "nonconsensual contact" with you two or more times, **and** that these contacts made you reasonably afraid of death or physical injury, or the death or physical injury of a family member.

"Contact" includes many things (not all of them are listed here). Examples are: calling you, messaging you on social media, following you, going onto your property, leaving objects for you, tracking you with GPS, hacking your phone

"Nonconsensual" contact means:

- Contact that you did not specifically agree to, or is not reasonable under generally accepted social norms
- Contact that you agreed to at first, but it continued after you told the respondent you no longer wanted it
- Contact that goes beyond what you agreed to

Note: If there is back-and-forth conversation or argument between you and the respondent, it is usually **not** considered nonconsensual contact, even if the conversation is negative.

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4. A protective order is necessary to keep me safe from future stalking, because:

5. I request an order from the court directing: *[check all that apply]*

- ☐ a. Respondent not to follow, approach, confront, watch, or stalk me in any other way, or threaten to do so.
- ☐ b. Respondent not to contact me by telephone, text message, social media, email, or otherwise communicate directly or indirectly by any means with me or these members of my household: *[Describe how the household members are related to you.]*

- ☐ c. Respondent to stay away from my residence.

Is this also Respondent's current residence? ☐ yes ☐ no

Does Respondent know where you live? ☐ yes ☐ no ☐ I don't know

Do you want your residence to remain confidential from Respondent? ☐ yes ☐ no

[Important: only list your address on the line below if you want it written on the protective order as a place for Respondent to stay away from. Your address will **not** be confidential if it is listed on the court order.]

My residence address: _____

Respondent's residence is:

☐ unknown to me

☐ in the same building as my residence

☐ approximately _____ ☐ feet ☐ miles from my residence

Describe or give address: _____

- ☐ d. Respondent to stay away from the following places I go:

<u>Place</u>	<u>Street Address</u>	<u>Distance to Stay Away</u>
☐ My school	_____	_____ ☐ ft. ☐ mi.
☐ Respondent also goes to school here.		
☐ My child(ren)'s school	_____	_____ ☐ ft. ☐ mi.
☐ Respondent also has a child or children at this school.		
☐ My job	_____	_____ ☐ ft. ☐ mi.
☐ Respondent also works here.		
☐ _____	_____	_____ ☐ ft. ☐ mi.
☐ _____	_____	_____ ☐ ft. ☐ mi.
☐ _____	_____	_____ ☐ ft. ☐ mi.

Exceptions: _____

- ☐ e. Other protections requested:

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6. Open court cases, in this or another state, involving me or Respondent (that I know of):

<u>Type of Case</u>	<u>Court Location</u>	<u>Petitioner or Respondent</u>
_____	_____	_____
_____	_____	_____

Respondent has these other court cases that I want the court to know about:

<u>Type of Case</u>	<u>Court Location</u>
_____	_____
_____	_____

****Both Petitioner and Respondent must tell the court of any court cases involving either of you that arise while a petition for protective order is pending. AS 18.65.865(d).****

7. Respondent information (if known):

Respondent's full legal name and any nicknames or other names used: _____

Respondent's mailing address: _____

Respondent's home phone: _____ Work phone: _____

Respondent's email address: _____

8. Petitioner information:

The court needs your mailing and email address to send you court papers, including notices of court hearing dates. **If you do not have an address, email, or telephone number that can safely be shown to Respondent, do not fill out the lines below. Instead, include this information on [DV-128, Confidential Contact Information Sheet](#).** The court will keep that form confidential (secret) and not reveal it to Respondent.

☐ I am providing my contact information on DV-128 instead of filling out this section.

Full legal name and other names used: _____

My (safe) mailing address: _____

My (safe) email: _____ My (safe) phone: _____

By providing an email address, I agree that the court can send me court documents at this email.



You must also fill out form [DV-127](#) in order for the court to review your petition. If you're using TrueFiling, submit both documents separately.

Use of TrueFiling ([Administrative Bulletin No. 92](#) - AB 92)

You **must** use TrueFiling unless you are exempt. You are exempt if one of these applies:

- You are in a jail or correctional facility.
- You have a disability under the Americans with Disabilities Act (ADA).
- You do not have safe access to a computer, internet, or email.
- You cannot get the help you need to use TrueFiling.
- You have a language barrier or are Limited English Proficient.

You do not need to prove you are exempt. If you are exempt **and** you choose not to use TrueFiling, check and sign the text box below. If you sign below, you can only give documents to the court by mail or in person. You cannot email them.

☐ I certify that I am exempt from using TrueFiling for a reason listed in AB 92.

Signature: _____ Print or Type Name: _____

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[Wait to sign the petition until you are in front of a notary public. The court clerk can do this for you for free. Bring a valid photo ID with you. If you do not have access to a notary or a court clerk, or if you do not have ID, attach "Self-Certification" (form [TF-835](#)) to this petition.]

I swear or affirm under penalty of perjury that everything I wrote in this petition is true to the best of my knowledge and belief.

_____ Date	_____ Petitioner's Signature	_____ Print or Type Name
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Subscribed and sworn to or affirmed before me at _____ on _____

(SEAL)

Court clerk, notary public, or other person
authorized to administer oaths
My commission expires: _____

Information about Filing Your Documents & Next Steps

1. **DV-127:** Fill out *Confidential Law Enforcement Information Sheet*, form DV-127 (available at ak-courts.info/dv127).
2. **Using TrueFiling:** Create a TrueFiling account and log in. Upload this petition and *Confidential Law Enforcement Information Sheet*, form DV-127. You need to upload them separately – not as one bundle. See instructions at ak-courts.info/tfhowto. **Note:** The email you use for TrueFiling can be seen by any other TrueFiling user. If you don't want to use your regular email address, you can get a new one just for your court filings. There are many companies where you can sign up for a free email address.
Not Using TrueFiling: Make a copy of this petition and *Confidential Law Enforcement Information Sheet*, DV-127 for your own records. Bring the originals to the court in person or mail them (court directory: ak-courts.info/dir).
3. **Hearings:** Some courts hold hearings on ex parte (20-day) petitions, but others do not. If there is not a hearing, the judge will decide whether or not to grant the order based only on what you wrote in the petition. The clerk will tell you the judge's decision. If there is a hearing, the court will send you information about it and whether you will be in person or on the phone. The judge will tell you the decision at the hearing. If the hearing is over the phone, make sure that you keep your phone charged and with you so that you do not miss the judge's call. If you miss the call, your petition could be denied.
4. More information about civil protective orders: ak-courts.info/dv. For more help, call the Family Law Self-Help Center at (907) 264-0851 or (866) 279-0851.



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